

25STCV22910 25STCV22910

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-10

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Case Number: 25STCV22910 Hearing Date: September 10, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 309

TENTATIVE RULING

MATTHEW MASSMAN, et al.

vs.

6122 WILSHIRE BOULEVARD PROPERTY

Case

No.: 25STCV22910

Hearing Date: September 11, 2026

Plaintiff's

motion for terminating sanctions is MOOT. However, Defendant is sanctioned, jointly and severally with counsel, \$1,050 (\$350/hr x 3), due within 20 days of entry of this order.

On 8/4/2025,

Plaintiffs Matthew and Marissa Long (collectively, Plaintiffs) filed suit against 6122 Wilshire Boulevard Property (6122 or Defendant), alleging: (1)

breach of contract; (2) breach of warranty of habitability; (3) breach of statutory warranty of habitability; (4) breach of the covenant of quiet enjoyment; and (5) private nuisance.

On 6/1/2025,
Plaintiff moved for terminating sanctions against Defendant.

Discussion

Plaintiff

seeks terminating sanctions based on Defendant's failure to produce Tanya Hakim for deposition on 5/28/2026, despite a Court order to do so. (See 5/27/2026 Minute Order).

Plaintiff

contends that "Defendant previously argued to this Court on May 27, 2026, that Tanya Hakim needed to be in Los Angeles on May 28, 2026, to care for her purportedly sick mother, but counsel for Defendant stated later that day after the hearing to counsel for Plaintiffs that Tanya Hakim would not appear because she was "indisposed and out of town." See, Declaration of Jason T. Newton, Exhibit E." (Motion, 3: 6-10.)

In

opposition, Defendant argues that motion is moot as the deposition of Tanya Hakim has since taken place. However, Defendant offers inadequate justification for the failure to timely produce Ms. Hakim for deposition in keeping with this Court's order. Accordingly, monetary sanctions are justified.

Plaintiff's

motion for terminating sanctions is moot. However, Defendant is sanctioned, jointly and severally with counsel, \$1,050 (\$350/hr x 3), due within 20 days of entry of this order.

It is so
ordered.

Dated: September
, 2026

Hon. Jon R.

Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at smcdept17@lacourt.org by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.